

26PSCV01052 26PSCV01052

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-07-07

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Case Number: 26PSCV01052 Hearing Date: July 7, 2026 Dept: G

Defendant

J Star Automotive Group, Inc.'s Motion to Vacate/Set Aside Dismissal

Respondent:

NO OPPOSITON

TENTATIVE

RULING

Defendant

J Star Automotive Group, Inc.'s Motion to Vacate/Set Aside Dismissal is GRANTED.

BACKGROUND

This

is a personal injury action arising from a motor vehicle collision. On April 16, 2024, defendant J Star Automotive Group, Inc. (J Star) allegedly entrusted a motor vehicle to its employees, defendants Jared William Merrell (Merrell), Donna Kay Machado (Machado), and Martha Hubner (Hubner), who caused a collision with plaintiff Juan Carlos Pinilla (Pinilla).

On

March 20, 2026, Pinilla filed the Complaint, alleging a sole cause of action for motor vehicle.

On

June 5, 2026, J Star filed the Cross-Complaint, alleging causes of action for (1) indemnity, (2) declaratory relief, and (3) contribution. That same day, the court granted J Star's

request to dismiss the Cross-Complaint.

On

June 12, 2026, J Star filed this motion to vacate dismissal, which is unopposed.

The

motion is set for hearing on July 7, 2026.

ANALYSIS

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Star moves to vacate the dismissal of the Complaint based on attorney error. For the following reasons, the court GRANTS the motion.

Legal

Standard

The

court must vacate a dismissal if it was the result of the attorney's mistake, inadvertence, surprise, or neglect.

(Code Civ. Proc., § 473, subd. (b).)

The attorney must include a sworn affidavit attesting to their mistake, and the court must direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel and parties.

(Ibid.) To obtain relief

under the mandatory provision, "counsel need not show that his or her mistake, inadvertence, surprise or neglect was excusable. No reason need be given for the existence of one of these circumstances. Attestation

that one of these reasons existed is sufficient to obtain relief unless the

trial court finds that the dismissal did not occur because of these reasons." (Graham v. Beers (1994) 30 Cal. App. 4th 1656, 1660.) "The six-month time

limit for granting statutory relief is jurisdictional and the court may

not consider a motion for relief [under Section 473] made after that period has elapsed." (Manson, Iver & York v.

Black (2009) 176 Cal.App.4th 36, 42, emphasis added.)

Discussion

The

court dismissed the Cross-Complaint on June 5, 2026, the same day it was filed, pursuant to J Star's request for dismissal.

(See 6/5/2026 Request for Dismissal, ¶¶ 1, 5.) J Star filed this motion to vacate dismissal only one week later, so the court finds the motion is filed timely. (See Mot., p. 1; see also Code Civ. Proc., § 473, subd. (b).)

J Star's counsel attests in their sworn declaration

that they intended to dismiss Merrell only but instead filed a request to dismiss the entire Cross-Complaint. (See Beatts Decl., ¶¶

2–9.) The court finds this is a

sufficient basis to grant the motion under Code of Civil Procedure section 473, subdivision (b). (See

Graham, supra, 30 Cal.App.4th at 1660, stating, "No reason need be

given for the existence of [mistake, inadvertence, surprise, or neglect]. Attestation that one of these reasons existed is sufficient to obtain relief. . . .")

Therefore,

the court GRANTS the motion to vacate dismissal.

CONCLUSION

For

these reasons, the motion to vacate/set aside dismissal is GRANTED. J Star's cross-complaint filed on May 20, 2026 is reinstated as to all cross-defendants named.

If

J Star desires to dismiss named cross-defendant Merrell, J Star is directed to file a new request for dismissal as to Merrill only.